

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400035	HARRIS vs RAMIREZ	MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES AND REQUEST FOR PRODUCTION OF DOCUMENTS ANSWERS TO FORM INTERROGATORIES

Tentative Ruling:

The moving papers were untimely served. They were due to be served no later than 16 court days prior to the scheduled hearing, which was 6/26/26. Adding the additional two court days for electronic service, the motion was filed 6 calendar days late. As such, the motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400035	HARRIS vs RAMIREZ	MOTION FOR ORDER TO DEEM MATTERS ADMITTED

Tentative Ruling:

The moving papers were untimely served. They were due to be served no later than 16 court days prior to the scheduled hearing, which was 6/26/26. Adding the additional two court days for electronic service, the motion was filed 6 calendar days late. As such, the motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600665	LUNA vs TORRES	MOTION FOR EXTENSION OF TIME TO OBTAIN COUNSEL AND/OR STAY CIVIL PROCEEDINGS PENDING RELATED CRIMINAL MATTER

Tentative Ruling:

Complaint filed on January 27, 2026 for: (1) Negligence – Vehicular; (2) Negligent Entrustment; and (3) Battery against moving Defendant Jeralyn Dominguez and co-Defendant John Paul Torres, Jr.

* * *

Defendant Domingues now moves for an order: (1) extending time to retain legal counsel and respond to the Complaint; (2) staying this civil action, including all responsive pleading deadlines and discovery obligations, pending the resolution of the

related criminal investigation and/ or criminal proceedings arising from the same underlying incident involving co- defendant John Paul Torres.

This Motion is made pursuant to the Court' s inherent authority to control its proceedings and docket, including CCP §§ 1054 and 128(a), and on the grounds that (a) Defendant is currently attempting in good faith to retain legal counsel; (b) The allegations in this civil action substantially overlap with an ongoing criminal investigation and/or criminal proceedings arising from the same incident; (c) Proceeding with this matter at this time may substantially prejudice Defendant' s constitutional and procedural rights, including rights relating to self-incrimination and due process; and (d) A temporary stay would promote judicial economy, avoid inconsistent proceedings, and prevent undue prejudice to the parties.

In Opposition, Plaintiff contends that The Motion fails for two simple reasons. First, Defendant Dominguez is not an attorney. She is entitled to represent herself in this action, but she cannot seek relief on behalf of co-defendant John Paul Torres, Jr. ("Torres"), who has filed no motion of his own. To the extent the Motion seeks a stay or any other relief as to Torres, it must be denied. Second, as to Defendant Dominguez, herself, the criminal matter on which the Motion rests involves Torres alone. Defendant Dominguez has not been charged with any crime arising from this incident. She therefore faces no self-incrimination dilemma, and there is no basis to stay-or further delay Plaintiff's claims against her.

* * *

Analysis

This motion is denied.

First, Defendant Dominguez cannot seek relief for Defendant Torres, who has not filed a motion. No person may practice law in California unless the person is an active licensee of the State Bar. (Bus. & Prof. Code. § 6125.) A party may appear in propria persona on her own behalf, but a person who is not an attorney has no authority to appear for, or seek relief on behalf of, another. (*J. Fly: V. Superior Court* (1993) 17 Cal.App.4th 958, 965; *Ziegler v. Nickel* (1998) 64 Cal.App.4th 10 545. 547.)

Defendant Dominguez, appearing in propria persona, is free to file responsive papers and motions on her own behalf. She is not free to move this Court for a stay of the proceedings against Defendant Torres. If Defendant Torres believes he is entitled to a stay pending the criminal matter against him, he must seek that relief himself, through his own filings or through counsel of his own. He has filed no such motion. Accordingly, to the extent the Motion seeks an extension of time, a stay, or any other relief as to Defendant Torres, the Motion must be denied

Second, there is apparently no criminal proceeding against Defendant Dominguez, and therefore no basis for a stay as to her. The entire premise of the requested stay is a "related criminal matter" arising from the underlying incident. But by Defendant Dominguez's own account, that criminal matter involves Defendant Torres

alone: her declaration describes only a criminal investigation and/or criminal proceedings arising from the same underlying incident involving "co-defendant John Paul Torres, Jr." (Dominguez Decl., ¶¶ 3-4.) Dominguez has not been charged with any crime arising from this incident, and she does not contend otherwise.

As noted in the Opposition, at trial court has discretion to stay a civil action where a party faces a parallel criminal proceeding and would otherwise be forced to choose between asserting the privilege against self-incrimination and defending against the civil claims, although even then a stay is not constitutionally required. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 882, 885.) In the present matter, the predicate is entirely absent. Defendant Dominguez faces no criminal charge and no self-incrimination dilemma. The privilege against self-incrimination is personal to its holder; it supplies no basis for Defendant Dominguez to halt Plaintiff's negligent entrustment claim against her based on another person's potential criminal exposure. Plaintiff, meanwhile, has a substantial interest in proceeding expeditiously with his claims while evidence and witness recollections remain fresh. The request for a stay as to Defendant Dominguez is denied.

Third, there is no good cause for an open-ended extension of time, which Defendant Dominguez requests as alternative relief. The present Motion identifies no concrete efforts to retain counsel and proposes no date certain by which Defendant Dominguez will respond to the Complaint. Instead, Defendant Dominguez asks that proceedings be paused "until the related criminal matter has sufficiently progressed or concluded" (Motion, p. 7), a criminal matter to which she is not a party. Plaintiff is right: the requested "extension" is simply the requested stay by another name, and it is denied for the same reasons.